

STATE OF NEW YORK

3058--B

Cal. No. 101

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. R. CARROLL, GALLAGHER, LEVENBERG, HYNDMAN, REYES, ROSENTHAL, SANTABARBARA -- read once and referred to the Committee on Consumer Affairs and Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the general business law, in relation to promoting consumer choice by requiring manufacturers of digital electronic equipment to provide retail sellers with a one through ten repair score that will be displayed to consumers at point of sale

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "The Electronics Repair Scores Act".

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3 § 2. Subdivision 1 of section 399-nn of the general business law is amended by adding two new paragraphs (s) and (t) to read as follows:

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5 (s) "Repair score" or "score" means a one through ten score calculated by the manufacturer based on the repair scoring criteria developed by the attorney general.

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8 (t) "Detailed score" means the information regarding the calculation and meaning of the repair score as defined by the scoring criteria developed by the attorney general.

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11 § 3. Subdivision 2 of section 399-nn of the general business law, as amended by chapter 48 of the laws of 2023, is amended to read as follows:

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14 2. Requirements. (a) An original equipment manufacturer shall make available to any independent repair provider and owner of digital electronic equipment manufactured by or on behalf of or sold by such original equipment manufacturer, on fair and reasonable terms, any documentation, parts, and tools required for the diagnosis, maintenance, or repair of such digital electronic equipment and parts that are manu-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 factured for the first time, and first sold or used in New York on or
2 after July first, two thousand twenty-three. Such documentation, parts,
3 and tools shall be made available either directly by an original equip-
4 ment manufacturer or via an authorized repair provider. An original
5 equipment manufacturer who, in the regular course of business, offers to
6 an owner the services of diagnosis, maintenance or repair of its own
7 digital electronic equipment, and who does not have an arrangement
8 described in paragraph (a) of subdivision one of this section with an
9 unaffiliated individual or business, shall be considered an authorized
10 repair provider with respect to such equipment.

11 (b) (i) For digital electronic equipment that is sold or used in this
12 state, an original equipment manufacturer shall make available to any
13 retail sellers and the attorney general the repair score and detailed
14 score for such digital electronic equipment, inclusive of any updates to
15 information.

16 (ii) Original equipment manufacturers shall print the repair score and
17 detailed score on packaging of such digital electronic equipment, the
18 score shall include the logo representation of the score as developed by
19 the attorney general.

20 (iii) Original equipment manufacturers shall clearly display repair
21 scores for such products on their website product listing pages, as well
22 as make publicly available detailed scores to all potential purchasers
23 on each product listing page.

24 (iv) Scoring criteria will be determined by the attorney general,
25 which shall periodically update such criteria, and a logo representation
26 of scores. Scoring criteria shall apply only to digital electronic
27 equipment manufactured for the first time, and first sold or used in New
28 York on or after one year from the effective date of this paragraph, and
29 which are already subject to widely accepted repairability index stand-
30 ards in other jurisdictions, including international standards. Scoring
31 criteria may include, but is not limited to: the free and public avail-
32 ability of technical documents regarding repair and maintenance of the
33 product; ease of disassembly of the product; availability of tools for
34 repair and maintenance of the product; availability of spare parts for
35 the product; length of software support by the manufacturer of the
36 product; the repair options available for the equipment; and other
37 criteria considered by widely accepted repairability index standards in
38 other jurisdictions. The attorney general shall make every effort to
39 incorporate the standards from existing repairability index standards
40 implemented in the U.S. and internationally, to avoid duplicative or
41 inconsistent regulatory standards, unless there are compelling reasons
42 to adopt new or differing standards.

43 § 4. This act shall take effect one year after it shall have become a
44 law.